

Appeals and Complaints Code, 2026

The Appeals Panel: who sits, what it hears, how it decides, and the effect of its decisions

Draft for adoption by Council and ratification by the Electors | September 30, 2026

Status	Draft for adoption by Council Resolution and ratification by the Electors in a Ratification Vote.
Hears	Appeals and complaints under the Members' Bill of Rights, the Housing, Education Support, Business Ventures and Member Loans, Access to Information and Privacy, Whistleblower Protection, and Conduct and Conflict of Interest Codes, and any other Document that gives it a role.
Does not hear	Election appeals, removal of members of Council, and other matters assigned to the Election Appeal Tribunal. Membership appeals, which go to the Membership Appeals Officer.
Protected	Amended only by Ratification Vote.
Legal review	To be reviewed by legal counsel before adoption.

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APPEALS AND COMPLAINTS CODE OF THE FORT McMURRAY No. 468 FIRST NATION, 2026

WHEREAS an appeal to the same body that made a decision is not a review of that decision; and

WHEREAS Members are entitled to have decisions about their housing, education, loans, records, and rights reviewed by a body that is independent of Council and of the persons who made those decisions;

NOW THEREFORE the Council of the Fort McMurray No. 468 First Nation adopts this Code, subject to ratification by the Electors:

Part 1 **Interpretation**

1 Citation

- 1.1 This Code may be cited as the *Appeals and Complaints Code of the Fort McMurray No. 468 First Nation, 2026*.

2 Definitions

- 2.1 In this Code:
- (a) "Appeal" means an appeal from a decision that a Document of the First Nation makes appealable to the Panel;
 - (b) "Chair" means the chair of the Panel appointed under section 4;
 - (c) "Complaint" means a complaint that a Document of the First Nation allows to be made to the Panel, including a complaint under section 8 of the Members' Bill of Rights and a Reprisal complaint under the Whistleblower Protection Code;
 - (d) "Decision Maker" means the person or body whose decision or conduct is the subject of an Appeal or Complaint;
 - (e) "Elector Member" means a member of the Panel elected under section 5;
 - (f) "Panel" means the Appeals Panel established under section 3; and
 - (g) "Party" means the person who files an Appeal or Complaint, the Decision Maker, and any person the Panel adds because they are directly affected.
- 2.2 A term used in this Code that is not defined in section 2.1 has the meaning given in the Governance Constitution or, until it is in force, in the Customary Election Regulations or the Conduct and Conflict of Interest Code.

Part 2

The Appeals Panel

3 Establishment

- 3.1 There is established an Appeals Panel consisting of the Chair and two (2) Elector Members. Two (2) alternate Elector Members shall also be elected to sit when an Elector Member cannot.
- 3.2 The Panel is independent of Council and Administration. No member of Council, Official, or employee shall direct the Panel or any of its members on any matter before it.

4 Chair

- 4.1 The Chair shall be a lawyer in good standing or a retired judge who is not a Member, an employee or contractor of the First Nation or a First Nation Business Entity, or Immediate Family of a member of Council.
- 4.2 Council shall appoint the Chair by Resolution for a term of four (4) years, after a public call for applications posted for at least thirty (30) days. The appointment continues unless a majority of the Electors voting at the next Annual General Assembly or Special Meeting vote not to confirm it.
- 4.3 The Chair may be removed during the term only by the Election Appeal Tribunal for incapacity, conflict of interest, misconduct, or failure to perform the duties of the office, after notice and a hearing.
- 4.4 If the office of Chair is vacant for more than ninety (90) days, the Election Appeal Tribunal shall appoint a qualified person.

5 Elector Members

- 5.1 The Elector Members and alternates shall be elected by the Electors at the Annual General Assembly for staggered terms of three (3) years.
- 5.2 An Elector Member or alternate shall be an Elector, and shall not be a member of Council, an employee of the First Nation or a First Nation Business Entity, a member of another body established by a Document whose decisions the Panel reviews, or Immediate Family of a member of Council.
- 5.3 An Elector Member or alternate who is nominated as a candidate in an Election shall resign from the Panel within two (2) days after being nominated. If they do not, their position is vacant on the third day.
- 5.4 An Elector Member or alternate may be removed only by a majority of the Electors voting at an Annual General Assembly or Special Meeting. A vacancy shall be filled at the next Annual General Assembly, and in the meantime an alternate shall sit.
- 5.5 Each Elector Member and alternate shall complete training in administrative fairness, arranged by the Chair, within ninety (90) days after election.

6 Remuneration and Budget

- 6.1 The fees of the Chair and the stipend of the Elector Members shall be set in a schedule approved by the Electors at the Annual General Assembly, and shall not be reduced during a term.
- 6.2 The Panel shall have a separate line in the annual budget sufficient to carry out its duties, including legal advice and interpreters.

7 Conflicts and Quorum

- 7.1 A member of the Panel who is Immediate Family of a Party, who took part in the decision under review, or who has any other personal interest in the matter shall not sit, and shall be replaced by an alternate.
- 7.2 A quorum of the Panel is the Chair and one (1) Elector Member. Where no Elector Member or alternate can sit on a matter, the Chair may decide it alone.
- 7.3 Every member of the Panel is an Official under Part 7 of the Conduct and Conflict of Interest Code.

8 Jurisdiction

- 8.1 The Panel hears and decides:
 - (a) Appeals under the Housing Code, the Education Support Code, the Business Ventures and Member Loans Code, and the Access to Information and Privacy Code;
 - (b) Complaints under the Members' Bill of Rights;
 - (c) Reprisal complaints under the Whistleblower Protection Code;
 - (d) appeals from sanctions under the Conduct and Conflict of Interest Code;
 - (e) the removal of the independent member of the Finance and Audit Committee under the Financial Administration Code; and
 - (f) any other matter that a Document of the First Nation assigns to it.
- 8.2 The Panel does not hear election appeals, petitions for the removal of a member of Council, or any other matter that the Customary Election Regulations assign to the Election Appeal Tribunal, and does not hear appeals under the Membership Code.
- 8.3 The Panel carries out the review of the Governance Constitution and the Members' Bill of Rights under section 16 of the Governance Constitution, and names the members of the Business Support Panel under the Business Ventures and Member Loans Code.

Part 3

Procedure

9 Filing

- 9.1 An Appeal or Complaint shall be filed in writing with the Panel within the time set by the Document under which it is made or, if none is set, within sixty (60) days after the Party learned of the decision or conduct and not later than one (1) year after it occurred.
- 9.2 The Appeal or Complaint shall state the date, the decision or conduct, the Decision Maker, the section of the Document relied on, the facts, and the order requested. The Panel shall publish a form and shall help any Party who asks to complete it.
- 9.3 No fee shall be charged.
- 9.4 The Panel may extend the time for filing where the delay was caused by illness, the Decision Maker's failure to give written notice of the decision, or another reasonable cause, and no other Party would be unfairly prejudiced.

10 Preliminary Review

- 10.1 Within fifteen (15) days after filing, the Panel may dismiss an Appeal or Complaint that states no section and no fact, or that is outside its jurisdiction, with written reasons. Otherwise, it shall deliver a copy to the Decision Maker.

11 Response

- 11.1 The Decision Maker has fourteen (14) days after receiving the copy to respond in writing and to deliver to the Panel every Record relevant to the matter. Where the Document under which the matter is brought requires a decision in less than thirty (30) days, the response time is seven (7) days.
- 11.2 The Panel shall proceed whether or not a response is filed.

12 Hearing

- 12.1 The Panel shall decide each matter in accordance with the rules of natural justice and administrative fairness. Each Party shall have a full opportunity to present evidence and argument and to respond to the evidence and argument of the others.
- 12.2 The Panel may decide a matter on written submissions, or may hold an oral hearing in person on a Reserve, in another community where Members live, or by video or telephone.
- 12.3 A Party may be represented or assisted by a person of their choice, and may use an interpreter, which the First Nation shall provide on request for an Indigenous language used by Members.
- 12.4 The Panel may require any member of Council, Official, or employee to attend and answer questions, and to produce any Record, and the First Nation shall ensure that they comply. The Panel is not bound by the rules of evidence.
- 12.5 Hearings are open to Members, except where the Panel orders otherwise to protect Personal Information or a person's safety.

13 Interim Orders

- 13.1 The Panel may suspend a decision under review until the matter is decided, where necessary to prevent harm that could not be undone later. A suspension required by section 14.2 of the Whistleblower Protection Code takes effect without an order.

Part 4

Decisions and Remedies

14 Time for Decision

- 14.1 The Panel shall decide each matter within the time set by the Document under which it is brought or, if none is set, within thirty (30) days after the response period ends.

15 Form of Decision

- 15.1 Every decision shall be in writing, shall state the facts found, the section of each Document applied, the reasons, and the order made, and shall be delivered to each Party.
- 15.2 The Panel shall publish each decision within seven (7) days after it is made, without the name or Personal Information of any Party who is a Member acting in a personal capacity, unless that Party consents. The names of members of Council, Officials, and employees acting in their roles may be published.
- 15.3 The Panel shall not publish health information, or the content of an allegation it found to be false.

16 Remedies

- 16.1 The Panel may make any of the following orders that the Document under which the matter is brought permits:
- (a) confirm the decision;
 - (b) set the decision aside and substitute the decision that should have been made;
 - (c) set the decision aside and send the matter back to the Decision Maker with directions, which may include that it be decided by persons who did not make the original decision;
 - (d) declare that a Resolution, policy, or decision is void because it is contrary to a Document of the First Nation;
 - (e) order the restoration of a benefit, Points, a place on a list, housing, or employment, and the payment of lost pay, benefits, or income and reasonable expenses;
 - (f) order the release of a Record or the correction of Personal Information;
 - (g) order repayment to the First Nation of an amount paid without authority, by a stated date; and
 - (h) order that an Official or employee take no part in decisions about the Party, or in a stated class of individual decisions, for a stated period of up to two (2) years.
- 16.2 The Panel may not remove or suspend a member of Council. Where a finding may support removal, the Panel shall refer it to the Integrity Commissioner, who may act under the Conduct and Conflict of Interest Code.
- 16.3 Where the Panel finds that a Decision Maker relied on a reason that a Document of the First Nation prohibits, it shall set the decision aside.

17 Effect of Decisions

- 17.1 A decision of the Panel is final and binding on the First Nation, subject to judicial review by a court.
- 17.2 Council shall not overturn, suspend, or delay a decision of the Panel. A Resolution that purports to do so is void, and voting for it is a breach of the Conduct and Conflict of Interest Code.
- 17.3 The First Nation shall carry out an order within the time the Panel sets or, if no time is set, within fourteen (14) days. The Panel shall publish any failure to carry out an order and report it to the Integrity Commissioner.

Part 5

Accountability of the Panel

18 Deadlines of the Panel

- 18.1 The Records Officer shall publish each deadline in this Code or another Document that the Panel misses, on the day after it is missed.
- 18.2 Where the Panel misses three (3) deadlines in a fiscal year, a petition of at least twenty-five (25) Electors under the Community Votes and Petitions Code may require a Special Meeting of Electors to remove and replace one or more Elector Members, and the Electors may at the same meeting vote not to confirm the Chair, in which case section 4.4 applies.

19 Annual Report

- 19.1 The Panel shall present an annual report to the Annual General Assembly showing the number of matters filed under each Document, the outcomes, the average time to decide, any missed deadlines, and any order not carried out.

20 Rules of Procedure

- 20.1 The Panel may make written rules of procedure consistent with this Code, which shall be published at least thirty (30) days before they take effect.

Part 6

Amendment and Coming into Force

21 Amendment

- 21.1 This Code is a protected Document. It may be amended only with the approval of the Electors in a Ratification Vote, after the full text of the proposed amendment has been published for at least forty-five (45) days. Council may not suspend any provision of it.

22 Coming into Force and Transition

- 22.1 This Code comes into force on the date of the Resolution adopting it.
- 22.2 Within sixty (60) days after this Code comes into force, Council shall appoint the first Chair under section 4.
- 22.3 The first Elector Members and alternates shall be elected at a Special Meeting of Electors held within ninety (90) days after this Code comes into force, or at the Annual General Assembly if it is held sooner. One (1) Elector Member and one (1) alternate shall serve an initial term of two (2) years so that terms are staggered.
- 22.4 Until the Panel is established, its functions shall be performed as section 17.4 of the Governance Constitution, or the Document under which the matter arises, provides.
- 22.5 Council shall put this Code to the Electors for ratification within twelve (12) months after it comes into force.

Adopted by Council

Resolution No. and date

Signature of Chief

Signature of Councillor

Ratified by the Electors

Date of vote and votes for / against / total
Electors on the List

Signature of the Electoral Officer

Explanatory Notes

1. Purpose

This Code establishes one Appeals Panel for decisions about Members' housing, education support, loans, records, privacy, and rights, and for reprisal complaints, so that no one appeals to the body that made the decision. These notes are not part of the Code.

2. Key provisions

- The Panel is a lawyer or retired judge who is not a Member, as Chair, and two Electors elected at the Annual General Assembly, with two elected alternates (sections 3 to 5).
- Members of Council, employees, members of other bodies whose decisions the Panel reviews, and families of members of Council may not sit (section 5.2).
- An Elector Member who runs for Council must resign within two days after nomination (section 5.3).
- Pay for Panel members is set by the Electors and cannot be cut during a term (section 6).
- A written decision within the time the Document sets, or within 30 days after the response period (section 14).
- Council cannot overturn a Panel decision. A Resolution that tries to is void (section 17.2).
- The Panel cannot remove a member of Council. Removal stays with the Election Appeal Tribunal and the Electors under the Customary Election Regulations (section 16.2).
- Missed deadlines are published, and repeated misses allow the Electors to replace Panel members (section 18).

3. Which body hears what

Matter	Body
Election appeals, removal of members of Council, Electoral Officer and Integrity Commissioner removal	Election Appeal Tribunal (Document 05)
Membership applications and removals	Membership Appeals Officer (Document 08)
Conduct of members of Council and Officials	Integrity Commissioner (Document 07), with appeal of sanctions to the Panel
Housing, education support, loans, business support, records, privacy, Bill of Rights complaints, reprisal	Appeals Panel (this Code)
Financial complaints and disputed amounts owed	Finance and Audit Committee (Document 09)

4. Legal sources

Source	Provision
Federal Courts Act, s. 18.1	Judicial review of decisions of a federal board, commission, or other tribunal, which courts have applied to decision makers of First Nations exercising powers under the Indian Act or custom. An application is generally made within 30 days after the decision is communicated (s. 18.1(2))
Members' Bill of Rights (Document 04), ss. 4, 8	Right of appeal and complaints to the Panel